

23NWCV03886 23NWCV03886

County: los-angeles

Division: Civil Law and Motion

Department: R

Hearing date: 2026-08-20

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Case Number: 23NWCV03886 Hearing Date: August 20, 2026 Dept: R

#15

BERMUDEZ v. NORWALK ARTS AND SPORTS COMPLEX, ET AL.

CASE

NO.: 23NWCV03886

HEARING:

Thursday, August 20, 2026, at 9:30 AM

Defendant

CITY OF NORWALK's Motion to Deem Requests for Admission, Set One Admitted against Plaintiff JUAN BERMUDEZ is GRANTED.

Moving

Party to give Notice.

Background

Defendant

CITY OF NORWALK ("Defendant") moves to have Requests for Admissions, Set One, Admitted against Plaintiff JUAN BERMUDEZ. ("Plaintiff").

Legal

Standard

"If a party

to whom requests for admission are directed fails to serve a

timely response, the following rules apply: (a) The party to whom the requests for admission are directed waives any objection to the requests.... The Court, on motion, may relieve that party from this waiver on its determination that both of the following conditions are satisfied: (1) The party has subsequently served a response that is in substantial compliance with Sections 2033.210, 2033.220, and 2033.230. (2) the party's failure to serve a timely response was the result of mistake, inadvertence, or excusable neglect.... (c) The court shall make this order, unless it finds that the party to whom the requests for admission have been directed has served, before the hearing on the motion, a proposed response to the requests for admission that is in substantial compliance with Section 2033.220. It is mandatory that the court impose a monetary sanction under Chapter 7...on the party or attorney, or both, whose failure to serve a timely response to requests for admission necessitated this motion." (CCP §2033.280.)

Unverified responses "are tantamount to no responses at all." (Appleton v. Superior Court (1988) 206 Cal.App.3d 632, 636.)

On

April 16, 2026, Defendant served Plaintiff with Defendant's Requests for Admission, Set One. Plaintiff's response was due on or before May 21, 2026.

Plaintiff

failed to provide a response.

Therefore,

Defendant's Motion is GRANTED. Defendant's Requests for Admissions, Set One is Deemed Admitted.

Reasonable

sanctions are GRANTED in the total amount of \$250.00. Plaintiff JUAN BERMUDEZ is ORDERED to pay Moving Party and their counsel of record sanctions in the total amount of \$250.00, payable within 60 days from the date of the Court's issuance of this Order.